

2018 C L D 1451

[Lahore]

Before Jawad Hassan and Muzamil Akhtar Shabir, JJ

GHULAM HAIDER---Appellant

Versus

HABIB BANK LIMITED---Respondent

R.F.A. No. 4 of 2017, decided on 10th September, 2018.

Financial Institutions (Recovery of Finances) Ordinance (XLVI of 2001)---

---Ss. 10, 9 & 22---Procedure of Banking Court---Suit for recovery---Application for leave to defend, adjudication of---Defendant impugned the order of Banking Court whereby its application for leave to defend was rejected, on the ground, inter alia, that said order did not take into account the plaintiff Bank's failure to produce evidence in support of its claim---Validity---Perusal of record revealed that the plaintiff Bank through production of substantial documents, established that finance facility was disbursed to the defendant and such documents contained signatures of the defendant---Plaintiff Bank also appended with the suit all relevant documents executed between the parties---Application for leave to defend was therefore, rightly rejected---Appeal was dismissed, in circumstances.

Syed Phool Badshah and others v. Agricultural Development Bank of Pakistan through Manager, Peshawar Branch and others 2012 CLD 1608 distinguished.

Rai Fahd Mahmood for Appellant.

Ms. Zartaj Naseem for Respondent.

JUDGMENT

JAWAD HASSAN, J.---Through this Appeal, filed under section 22 of the Financial Institutions (Recovery of Finances) Ordinance, 2001 (the "Ordinance"), the Appellant has challenged the validity of judgment and decree dated 23.11.2016 passed by the Banking Court, Bahawalpur (the "Banking Court") whereby the suit filed by the Respondent/Bank was decreed.

2. The facts succinctly revealed from the Appeal are that the Respondent filed a suit for recovery of Rs.11,31,683.96 against the Appellant along with cost of suit and costs of funds from the date of default till final recovery. The Appellant appeared and filed Application under section 10 of the Ordinance for grant of unconditional leave to defend the suit. The said Application for leave to appear and defend the suit was dismissed by the Banking Court and resultantly the suit was decreed, vide the impugned judgment and decree. Hence, this Appeal.

3. Learned counsel for the Appellant inter alia contended that the impugned judgment and decree is against the law and facts; that the Banking Court has not passed the impugned judgment and decree keeping in view the facts and circumstances of the case in its true perspective; that the Banking Court has not applied its judicial mind while passing the impugned judgment and decree; that the documents appended with the record have not been duly taken into consideration, as such there is misreading and non-reading of material available on record; that the impugned judgment and decree is sketchy in nature and has been passed in hasty manner; that the Banking Court has failed to give any findings on the issues involved in the case and controversies between the parties; that the factual controversy was involved in the matter, hence the evidence was to be recorded to reach the just decision of the case; that the suit was filed against the provisions of the section 9 of the Ordinance. In support of his contentions, learned counsel has placed reliance on the case titled Syed Phool Badshah and others v. Agricultural Development Bank of Pakistan through Manager, Peshawar Branch and others 2012 CLD 1608).

4. On the other hand, learned counsel for the Respondent supported the impugned judgment and decree and submitted that the same has been passed strictly in accordance with law and cannot be interfered with by this Court.

5. We have heard the arguments of the learned counsel for the parties and perused the record.

6. The main grievance of the Appellants is that the impugned judgment and decree has been passed without taking into consideration the fact that the Respondent Bank has failed to produce any evidence in support of its claim. The perusal of record as well as the impugned judgment and decree reveal that the Respondent through production of substantial documents have established on record that finance facility was disbursed to the Appellant which was withdrawn by the Appellant and the said documents contained signatures of the Appellant, as such the Banking Court has rightly declined to grant the unconditional leave to the Appellant. Moreover, the impugned judgment and decree depicts that while deciding the matter the Banking Court has taken into consideration all the grounds mentioned by the Appellant in the Application for unconditional leave to defend the suit. The record further reflects that the Respondent has also appended with the suit all the relevant documents which were executed between the parties and that went unshaken, therefore, the Banking Court after appreciating all the documents has passed the impugned judgment and decree. Furthermore, the judgment relied upon by the learned counsel for the Appellant is distinguishable from the facts and circumstances of the case in hand and cannot be relied upon as each and every case has its own facts and circumstances.

7. In view of the above situation, we fully agree with the findings of the Banking Court and do not find any illegality or perversity in the impugned judgment and decree which has been passed in consonance with the spirit of law, hence, does not call for interference by us.

8. As a sequel, this Appeal, being devoid of any merit, is hereby dismissed.

